

Subject: Stage 3 Escalation – Systemic Equality-Law Breach and Administrative Deflection (CA-2024-001342 / BV20D01752)

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From: Nadia <nadia@rosekross.com>

To: dr.jo.farrar@justice.gov.uk <dr.jo.farrar@justice.gov.uk>, alex.daviesjones.mp@parliament.uk <alex.daviesjones.mp@parliament.uk>, nick.goodwin@justice.gov.uk <nick.goodwin@justice.gov.uk>, sarah.sackman.mp@parliament.uk <sarah.sackman.mp@parliament.uk>

CC: public.enquiries@justice.gov.uk <public.enquiries@justice.gov.uk>, contacthmcts@justice.gov.uk <contacthmcts@justice.gov.uk>, david.lammy.mp@parliament.uk <david.lammy.mp@parliament.uk>, judicial.correspondence@judiciary.uk <judicial.correspondence@judiciary.uk>, judicial.office@judiciary.uk <judicial.office@judiciary.uk>, hlautismactcommittee@parliament.uk <hlautismactcommittee@parliament.uk>, Joe Powell MP <joe.powell.mp@parliament.uk>, civilappeals.registry@justice.gov.uk <civilappeals.registry@justice.gov.uk>, equality@justice.gov.uk <equality@justice.gov.uk>, HLAutismAct2009@parliament.uk <HLAutismAct2009@parliament.uk>

BCC: HLJusticeHomeAffairs@parliament.uk <HLJusticeHomeAffairs@parliament.uk>, justicecom@parliament.uk <justicecom@parliament.uk>, slaughter@parliament.uk <slaughter@parliament.uk>, josh.babarinde.mp@parliament.uk <josh.babarinde.mp@parliament.uk>, matt.bishop.mp@parliament.uk <matt.bishop.mp@parliament.uk>, pam.cox.mp@parliament.uk <pam.cox.mp@parliament.uk>, linsey.farnsworth.mp@parliament.uk <linsey.farnsworth.mp@parliament.uk>, ashley.fox.mp@parliament.uk <ashley.fox.mp@parliament.uk>, warinder.juss.mp@parliament.uk <warinder.juss.mp@parliament.uk>, tessa.munt.mp@parliament.uk <tessa.munt.mp@parliament.uk>, sarah.russell.mp@parliament.uk <sarah.russell.mp@parliament.uk>, neil.shastrihurst.mp@parliament.uk <neil.shastrihurst.mp@parliament.uk>, tony.vaughan.mp@parliament.uk <tony.vaughan.mp@parliament.uk>, ayo.onatade@supremecourt.uk <ayo.onatade@supremecourt.uk>, justicecom@parliament.uk <justicecom@parliament.uk>, HLJusticeHomeAffairs@parliament.uk <HLJusticeHomeAffairs@parliament.uk>, altond@parliament.uk <altond@parliament.uk>, juliet.campbell.mp@parliament.uk <juliet.campbell.mp@parliament.uk>, dholakian@parliament.uk <dholakian@parliament.uk>, tom.gordon.mp@parliament.uk <tom.gordon.mp@parliament.uk>, hilary.hard@btinternet.com <hilary.hard@btinternet.com>, tony@generatinggenius.org.uk <tony@generatinggenius.org.uk>, afzal.khan.mp@parliament.uk <afzal.khan.mp@parliament.uk>, alex@alexsobel.co.uk <alex@alexsobel.co.uk>, alex.sobel.mp@parliament.uk <alex.sobel.mp@parliament.uk>, swayed@parliament.uk <swayed@parliament.uk>, media@equalityhumanrights.com <media@equalityhumanrights.com>, inclusion@scope.org.uk <inclusion@scope.org.uk>, parliamentaryunit@citizensadvice.org.uk <parliamentaryunit@citizensadvice.org.uk>, campaign@nas.org.uk <campaign@nas.org.uk>, supporter@care@nas.org.uk <supporter@care@nas.org.uk>, customerrelationsenquiries@nas.org.uk <customerrelationsenquiries@nas.org.uk>, nas@nas.org.uk <nas@nas.org.uk>, info@autistica.org.uk <info@autistica.org.uk>, info@ambitiousaboutautism.org.uk <info@ambitiousaboutautism.org.uk>, press.office@ambitiousaboutautism.org.uk <press.office@ambitiousaboutautism.org.uk>, info@autism-alliance.org.uk <info@autism-alliance.org.uk>, info@ne-as.org.uk <info@ne-as.org.uk>, contact@autisticdoctorsinternational.com <contact@autisticdoctorsinternational.com>, team@specialneedsjungle.com <team@specialneedsjungle.com>, contact@npaa.org.uk <contact@npaa.org.uk>, info@neurodiversityinbusiness.org <info@neurodiversityinbusiness.org>, info@dfnprojectsearch.org <info@dfnprojectsearch.org>, hello@blacksenmamas.com <hello@blacksenmamas.com>, arc-info@medschl.cam.ac.uk <arc-info@medschl.cam.ac.uk>, info@autisminmind.com <info@autisminmind.com>, enquiries@autismeducationtrust.org.uk <enquiries@autismeducationtrust.org.uk>, info@autismspeaks.org.uk <info@autismspeaks.org.uk>, info@autismcentral.org.uk <info@autismcentral.org.uk>, enquiries@adhdandautism.org <enquiries@adhdandautism.org>, fundraising@autismearlysupport.org.uk <fundraising@autismearlysupport.org.uk>, info@autismadvocacy.co.uk <info@autismadvocacy.co.uk>, policy@nas.org.uk <policy@nas.org.uk>, info@autism-alliance.org.uk <info@autism-alliance.org.uk>, press@equalityhumanrights.com <press@equalityhumanrights.com>, media@disabilityrightsuk.org <media@disabilityrightsuk.org>, hello@autismalliance.org.uk <hello@autismalliance.org.uk>, info@inclusionlondon.org.uk <info@inclusionlondon.org.uk>, rensa.gaunt@inclusionlondon.org.uk

<rensa.gaunt@inclusionlondon.org.uk>, info@autism.org.uk <info@autism.org.uk>, policy@disabilityrightsuk.org <policy@disabilityrightsuk.org>, ponsonbyd@parliament.uk <ponsonbyd@parliament.uk>, hollinsb@parliament.uk <hollinsb@parliament.uk>, berridgeb@parliament.uk <berridgeb@parliament.uk>, robert.buckland.mp@parliament.uk <robert.buckland.mp@parliament.uk>, bell.ribeiroaddy.mp@parliament.uk <bell.ribeiroaddy.mp@parliament.uk>, press@autism.org.uk <press@autism.org.uk>, policy@autism.org.uk <policy@autism.org.uk>, enquiries@disabilityrightsuk.org <enquiries@disabilityrightsuk.org>, press@scope.org.uk <press@scope.org.uk>, media@rethink.org <media@rethink.org>, info@autistica.org.uk <info@autistica.org.uk>, info@inclusionlondon.org.uk <info@inclusionlondon.org.uk>, press@equalityhumanrights.com <press@equalityhumanrights.com>, correspondence@equalityhumanrights.com <correspondence@equalityhumanrights.com>, info@ambitiousaboutautism.org.uk <info@ambitiousaboutautism.org.uk>, contact@centreformentalhealth.org.uk <contact@centreformentalhealth.org.uk>, press@libertyhumanrights.org.uk <press@libertyhumanrights.org.uk>, info@justice.org.uk <info@justice.org.uk>, info@publiclawproject.org.uk <info@publiclawproject.org.uk>, policy@nas.org.uk <policy@nas.org.uk>, info@autism-alliance.org.uk <info@autism-alliance.org.uk>, legal@theguardian.com <legal@theguardian.com>, appg@autism.org.uk <appg@autism.org.uk>, jchr@parliament.uk <jchr@parliament.uk>, justicecom@parliament.uk <justicecom@parliament.uk>, newsdesk@lawgazette.co.uk <newsdesk@lawgazette.co.uk>, info@thelawyer.com <info@thelawyer.com>, contact@legalfutures.co.uk <contact@legalfutures.co.uk>, editor@justicegap.com <editor@justicegap.com>, enquiries@thebarrister.co.uk <enquiries@thebarrister.co.uk>, newsroom@rollonfriday.com <newsroom@rollonfriday.com>, news@disabilitynewsservice.com <news@disabilitynewsservice.com>, john@disabilitynewsservice.com <john@disabilitynewsservice.com>, editor@bylinetimes.com <editor@bylinetimes.com>, peter.jukes@bylinetimes.com <peter.jukes@bylinetimes.com>, campaigns@autism.org.uk <campaigns@autism.org.uk>, info@disabilityrightsuk.org <info@disabilityrightsuk.org>, press@equalityhumanrights.com <press@equalityhumanrights.com>, newsroom@civilserviceworld.com <newsroom@civilserviceworld.com>, press@policyexchange.org.uk <press@policyexchange.org.uk>, userinvestigations <userinvestigations@justice.gov.uk>, Tom Purser <Tom.Purser@autismaction.org.uk>

Priority: High

Attachments: Stage3_Escalation_NZahmoul_CA2024-001342_BV20D01752.pdf .pdf

Subject: Stage 3 Escalation – Systemic Equality-Law Breach and Administrative Deflection (CA-2024-001342 / BV20D01752)

Dear Mr Goodwin, Dr Farrar, Ms Sackman MP and Ms Davies-Jones MP,

Please find attached my **Stage 3** escalation letter concerning the continuing failure of **HMCTS and the Ministry of Justice** to address my Pre-Action correspondence of 20 and 21 October 2025 and subsequent escalations on 28 and 29 October 2025.

Despite multiple written submissions, neither department has provided acknowledgment or a substantive reply. Instead, the matter has been repeatedly misclassified as a “judicial” issue, preventing any administrative or equality-law review. This deflection is itself an administrative failure and breaches the **Public Sector Equality Duty under s.149 Equality Act 2010**.

The attached letter summarises:

1. The unlawful revocation of participation measures post-trial in breach of **FPR Part 3A**;
2. The **mischaracterisation of autism-related behaviour as misconduct** (see paragraph 64 of the judgment 18 April 2024);
3. The procedural exclusion that followed when my disabilities (autism and PTSD) were

ignored; and

4. The **systemic deflection of equality-law breaches** into the judicial domain, leaving no route of redress.

These are operational and policy failures for which **HMCTS** and **the MoJ** bear direct responsibility.

Judicial independence cannot be used to shield administrative non-compliance with equality and accessibility obligations.

This situation also reflects a broader failure identified in national policy.

As **Tom Purser, CEO of Autism Action**, stated in his June 2025 evidence to the **House of Lords Autism Act Committee**:

“Crucially we have seen that **the Act has not proven to be enforceable at any level** – from individuals to ministers – and no person or agency has been made accountable for its delivery or, critically, its failure.”

My case demonstrates this **gap** in action. There is currently **no accountability or enforceability mechanism** allowing autistic or otherwise vulnerable court users to challenge breaches of **Part 3A, the statutory guidance on the Autism Act 2009 or the Equality Act** when the courts themselves fail to comply.

This failure of enforcement leaves disabled litigants without meaningful remedy and undermines the integrity of the justice system.

I respectfully request:

1. Written acknowledgment of this **Stage 3** escalation within **48 hours**;
2. A joint review at Permanent-Secretary and Chief-Executive level; and
3. A substantive response within **seven days**, as detailed in the attached letter.

Please note that this matter has also been copied to oversight and advocacy recipients for transparency, given its public-interest significance in access to justice for neurodivergent and disabled court users.

Yours sincerely,

Nadia Zahmoul

Email: nadia@rosekross.com

Case Nos: CA-2024-001342 / BV20D01752

Attachments

1. Stage 3 Escalation Letter (30 Oct 2025) and Annex B - Background Note: Misclassification of Equality-Law Breaches as Judicial Matters

2. Court of Appeal Correspondence (29 Oct 2025, Exhibit NZ-T)
3. Stage 2 Escalation Letter (29 Oct 2025)
4. Pre-Action Protocol Letter + Annex A (20 Oct 2025)
5. Follow-Up Letter (21 Oct 2025)
6. Urgent Escalation (28 Oct 2025)
7. Letter to the Autism Act 2009 Committee (24 Oct 2025)